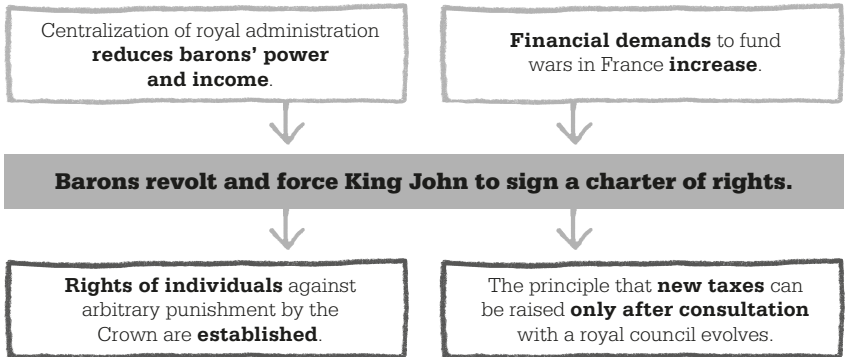




also broken the unspoken contract between himself and the barons, that allowed them to run their lands as they chose.

Hoping for support from the pope, who had excommunicated John in 1209, the rebellious barons confronted the king. Attempts at diplomacy failed, and by May 1215, the barons had occupied London, forcing John to enter into a treaty with them to avoid a civil war. After careful direction of negotiations by Archbishop Stephen Langton of Canterbury, the agreement—more a truce than a peace—was signed.

Provisions of the charter

The charter was known as the Magna Carta, or Great Charter, to distinguish it from a more restricted Forest Charter issued in 1217. Much of the Magna Carta dealt with redressing baronial grievances, but the section that has exerted the most influence down the ages was Chapter 39.

This open-ended clause protected all “free men” from arbitrary actions by the Crown such as arrest or confiscation of land. The charter survived the civil war that broke out soon after the Magna Carta was agreed, and the papal repudiation of the charter’s terms in August 1215, which led to the barons’ excommunication. Chapter 39 was extended under a 1354 law of Edward III to protect not only “free men” (a small minority in England where most people were technically serfs), but also any man “of whatever estate or condition he may be.” It survived longer than most of the other provisions, including the security clause that allowed barons to seize all the king’s land if he failed to fulfill his obligations under the agreement.

What had seemed a small concession that day in Runnymede provided a long-lasting rallying cry for opponents of royal tyranny. ■

Influence of the Magna Carta

The Magna Carta has acquired an almost mythical status as the constitutional bedrock of subjects’ rights. It contributed to the development of parliament from the 13th century, and was used by 17th-century rebels to argue against the divine

right of kings propounded by the Stuart monarchs Charles I and James II. Several American colonies’ charters contained clauses modeled on it, while the design of the Massachusetts seal chosen at the start of the Revolutionary War depicts a militiaman with sword in one hand and the Magna Carta in the other. Revolutionary feeling was fueled by Americans’ belief

that the Crown had breached the fundamental law enjoyed by all English subjects, and both the United States Constitution, enacted in 1789, and the Bill of Rights adopted two years later, were influenced by the Magna Carta’s limitations on the arbitrary powers of a government against its subjects.